

Calendar Line 2

Case Name: *Rivera et al. v. ULBP Inc. et al.*
Case No.: 22CV398302

This is a representative action under the Labor Code Private Attorneys General Act (PAGA), Labor Code section 2698 et seq., brought by plaintiffs Jeffrey Rivera and Natasha Heacock against defendants ULBP Inc. and related entities, and Willie Frank Senn. Plaintiffs' counsel, Blumenthal Nordrehaug Bhowmik De Blouw LLP ("Counsel" or "BNBD"), has filed a motion to be relieved as counsel for Plaintiff Natasha Heacock only; Counsel continues to represent Plaintiff Jeffrey Rivera. The record reflects no opposition to the motion. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court ("Rule 3.1362"). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating "in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."¹ (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties "by personal service, electronic service, or mail." (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:
(A) The service address is the current residence or business address of the client;
or

¹ Code of Civil Procedure section 284 provides, "The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: [¶] 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [¶] 2. Upon the order of the court, upon the application of either client or attorney, after notice one to the other."

(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

II. Discussion

Counsel attests that there has been a breakdown in the working relationship between Plaintiff Natasha Heacock (the "Client") and Counsel, such that Counsel is unable to effectively carry out its representation of the Client. (Ronan Decl., MC-052, ¶ 2.) Counsel further attests that the specific facts giving rise to the motion are confidential and are being withheld pursuant to Business and Professions Code section 6068, subdivision (e), rule 1.6 of the California Rules of Professional Conduct, and the attorney-client privilege (Evid. Code, § 950 et seq.), and requests that, should the Court require further detail to evaluate good cause, the Court conduct an in-camera hearing outside the presence of the other parties. (*Id.*; *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1136–37; Cal. Rules Prof. Conduct, rule 3-700(C).)

Counsel further attests that the Client was served by mail at her last known address with the motion papers. (Ronan Decl., MC-052, ¶ 3.a.(2).) Although Counsel was not able to confirm that this address is current, Counsel attests that reasonable efforts were made to confirm the address, including mailing the motion papers return receipt requested and calling the Client's last known telephone number. (*Id.* at ¶ 3.b.(2).) Counsel further attests that, notwithstanding the inability to confirm a current address, Counsel has taken diligent and reasonable steps to avoid reasonably foreseeable prejudice to the Client. (*Id.* at ¶ 3.c.) This

showing satisfies the alternative service requirement of Rule 3.1362(d)(B), which permits service at a client's last known address where the attorney has been unable to locate a more current address after reasonable efforts made within 30 days before the filing of the motion.

Counsel has submitted the motion and supporting declaration on the required Judicial Council forms (MC-051, MC-052) and has lodged a proposed order on the required Judicial Council form (MC-053), as required by Rule 3.1362(e).

The Court finds that Counsel has served the Client in accordance with Rule 3.1362(d), submitted a declaration establishing that the requirements of Rule 3.1362 have been satisfied, shown sufficient reason why the motion to be relieved as counsel should be granted, and shown why Counsel brought the instant motion under Code of Civil Procedure section 284(2) instead of filing a consent under section 284(1).

The Court notes that the proposed order identifies the next scheduled hearing in this action as the case management conference of March 4, 2026, a date that has already passed. Court records reflect that no hearing is currently scheduled subsequent to the July 15, 2026 hearing on this motion and the Case Management Conference set for the same date. Before the order is entered, Counsel and the Court will discuss the setting of a future Case Management Conference, and Counsel shall provide a revised proposed order so that the order accurately reflects the next scheduled hearing, as required by Rule 3.1362(e).

The Court further notes that this motion pertains only to Plaintiff Natasha Heacock. Counsel continues to represent Plaintiff Jeffrey Rivera, who is unaffected by this motion, and this action will remain pending with counsel of record for at least one plaintiff.

III. Conclusion

The motion to be relieved as counsel is GRANTED as to Plaintiff Natasha Heacock on the condition that Counsel provides a revised proposed order on Judicial Council form MC-053 accurately reflecting the next Case Management Conference now set by the Court. Ms. Heacock's new counsel, or Ms. Heacock herself if she elects to proceed in propria persona, shall appear at the next scheduled hearing in this action and shall keep the Court informed of

her current address. Plaintiff Heacock's failure to comply may result in the dismissal of the action as to her.

Case Management Conference July 15, 2026 at 2:30 p.m. is VACATED.

Further Case Management Conference for appearance of Plaintiff and identification of counsel, in lieu of dismissal, is set on September 16, 2026 at 2:30 p.m.

- oo0oo -

Calendar Line 3

Case Name: *Carbajal v. Scratch et al.*
Case No.: 24CV442539

This is a wage-and-hour class and representative action brought by Plaintiff Daniel Albani Carbajal (“Plaintiff”), individually and on behalf of a class of nonexempt, hourly employees, against Robert Fischer, doing business as Scratch, Palo Alto Creamery, Reposado, and The British Banker’s Club (“Defendant”).

The parties have reached a settlement, and the Court has granted Plaintiff’s unopposed motion for preliminary approval of the settlement. Now before the Court is Plaintiff’s unopposed motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for February 17, 2027 at 2:30 p.m. in Department 5.

I. Legal Standard

A. Class Actions

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

B. PAGA

Labor Code section 2699, subdivision (l)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. Where, as